AS TO THE ADMISSIBILITY OF

Application No. 19822/92
by S. L. O.
against Switzerland

The European Commission of Human Rights (Second Chamber) sitting in private on 24 February 1995, the following members being present:

Mr. H. DANELIUS, President
Mrs. G.H. THUNE
MM. G. JÖRUNDSSON
S. TRECHSEL
J.-C. SOYER
F. MARTINEZ
L. LOUCAIDES
J.-C. GEUS
M.A. NOWICKI
I. CABRAL BARRETO
J. MUCHA
D. SVÁBY

Mr. K. ROGGE, Secretary to the Chamber

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 4 April 1992 by S. L. O. against Switzerland and registered on 13 April 1992 under file No. 19822/92;

Having regard to the report provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant, a Swiss citizen and member of parliament, resides at Allschwil in Switzerland. Before the Commission she is represented by Mr. L.A. Minelli, a lawyer practising at Forch in Switzerland.

I.

In 1989 a Parliamentary Investigation Commission (Parlamentarische Untersuchungskommission) was set up to examine certain occurrences in the Federal Department of Justice and Police (Eidgenössisches Justiz- und Polizeidepartement). In the ensuing report it transpired that the Federal Police (Bundespolizei) had collected more than 900,000 files on various persons and organisations. As a result, thousands of citizens requested access to their files.

On 11 December 1989 the applicant consulted her file at the Federal Attorney's Office (Bundesanwaltschaft). When consulting her card she noticed that in respect of a number of entries the Security Service (Sicherheitsdienst) of Basel-Landschaft was mentioned as the informer.

On 12 December 1989 the applicant wrote to the Government

(Regierungsrat) of Basel-Landschaft, requesting access to the cantonal files.

On 18 December 1989 the Police Director (Polizeidirektor) of Basel-Landschaft forwarded the request to the Federal Attorney's Office, seeking information on how to deal with it.

On 5 March 1990 the Federal Government (Bundesrat) issued an Ordinance on the handling of state security files of the Confederation (Verordnung über die Behandlung von Staatsschutzakten des Bundes).

On 12 March 1990 the Cantonal Police (Kantonspolizei) of Basel-Landschaft dismissed the applicant's request to consult the cantonal files, and forwarded her request to the Special Delegate for state security files (Sonderbeauftragter für die Behandlung der Staatsschutzakten). It was also stated that the applicant's request to consult files not relating to state security would be decided later.

Against this decision the applicant on 26 March 1990 filed an appeal with the Government of Basel-Landschaft on 26 March 1990.

The Government dismissed the appeal on 12 June 1990. The decision stated inter alia that matters of the Federal Police fell within the jurisdiction of the Swiss Confederation; that the cantonal authorities had acted on behalf of the federal authorities; and that therefore the files, although kept in the Canton, were federal files. The decision also stated that the Federal Government had been competent to enact the Ordinance of 5 March 1990 by virtue of both the Swiss Federal Constitution (Bundesverfassung) and the Federal Act on the Organisation and Management of the Federal Government and the Federal Administration (Bundesgesetz über die Organisation und Geschäftsführung des Bundesrates und der Bundesverwaltung).

The applicant then filed three appeals, namely an appeal (Beschwerde) with the Administrative Court (Verwaltungsgericht) of Basel-Landschaft (see below, II.) and an administrative law appeal (Verwaltungsgerichtsbeschwerde) and a public law appeal (staatsrechtliche Beschwerde) with the Federal Court (Bundesgericht; see below, IV.).

II.

In her appeal of 25 June 1990 to the Administrative Court of Basel-Landschaft, the applicant argued that the Federal Police were not competent to keep such files, and that she should be granted access to the cantonal files concerning state security; in respect of files not concerning state security she maintained that there was a right at any time to consult them.

On 7 November 1990 the Administrative Court of Basel-Land partly upheld the applicant's appeal.

In its decision the Court examined its jurisdiction to deal with the appeal, in particular the lawfulness of the Ordinance of 5 March 1990. As a result, it found that the Federal Government was only competent directly to enact ordinances on state security in cases of emergency, and that otherwise there was no legal basis herefor. As a result, the Court decided to refer the case back to the Cantonal Government which was requested to give a decision based on cantonal law on the request to consult the files concerning state security. On the other hand, the Court dismissed the appeal insofar as it concerned the remaining police files, as the decision given had been an intermediary one which could not be contested at that stage.

III.

In respect of the decision of the Administrative Court of

7 November 1990 the Swiss Confederation filed on 1 February 1991 a public law action (staatsrechtliche Klage) against Basel-Landschaft with the Federal Court, claiming that the Confederation was competent to legislate in matters of state security, and that access to the files had to be regulated by federal, not cantonal, authorities.

The applicant submitted further observations to the Federal Court in which she also requested a hearing within the meaning of Article 6 of the Convention. The Administrative Court of Basel-Landschaft stated in its observations that the public law action did not constitute a remedy against cantonal decisions. The Government and the Parliament of Basel-Landschaft also submitted observations on the public law action.

On 29 May 1991 the Federal Court upheld the public law action and declared null and void the Administrative Court's decision of 7 November 1990.

In its decision the Federal Court rejected the applicant's request for a hearing as the object of the proceedings, the delimitation of competence between the Confederation and the Cantons, was not covered by Article 6 of the Convention.

The Court further found that the Confederation was competent to deal with all matters of internal and external state security. It noted that the files often contained information on pending investigations and findings in the fields of terrorism, counter-intelligence and organised crime, often stemming from foreign intelligence agencies. The files were frequently of eminent importance for internal and external security, for which reason only the Confederation was competent to decide on the handling of these files. The Federal Government, when issuing the Ordinance of 5 March 1990, had acted within its competence. The Federal Court concluded that the cantonal authorities were not competent to deal with these matters.

IV.

In her administrative law appeal of 5 July 1990 to the Federal Court the applicant argued that there was no legal basis for a federal political police dealing with matters of state security. Invoking inter alia Articles 8 - 11 of the Convention she claimed that she was entitled to inspect such files, and that there was no legal basis for the interference with her rights. Under Article 6 para. 1 of the Convention she was entitled to have her case heard by a tribunal within a reasonable time.

The applicant repeated these issues in essence in her public law appeal to the Federal Court dated 9 July 1990. She argued that there was no basis for cooperation on matters of state security between the Confederation and the Cantons.

On 23 October 1991 the applicant sent a letter to the Federal Court, asking when the court would decide on her appeals. By letter of 10 December 1991 the Federal Court informed her that a decision would probably be given in winter or spring of 1992.

By judgment of 25 March 1992 the Federal Court dismissed both the applicant's administrative law appeal and public law appeal. The judgment was served on 1 May 1992.

In its judgment the Court considered that it had already decided on 29 March 1991 that the Confederation had been competent to issue the Ordinance of 5 March 1990. Insofar as the applicant requested access to court within the meaning of Article 6 para. 1 of the Convention the decision continued:

<Translation>

"The requests of the applicant to consult the case-files concerning ... herself, have so far not been decided in substance. According to the Ordinance on the handling of state security files the federal authorities must now examine the requests for consulting the files ... It is not at all excluded that the applicant will in fact be granted access to the files. If the reply is negative the applicant can apply to the Ombudsman ... Thereupon the applicant can file a complaint with the federal agency concerned and put forward in these proceedings that the Human Rights Convention requires a court to decide on her request of consultation."

<German>

"Die Gesuche der Beschwerdeführerin um Einsicht in die sie selbst ... betreffenden Akten konnten bisher materiell noch nicht beurteilt werden. Entsprechend den Bestimmungen in der Verordnung über die Behandlung von Staatsschutzakten wird die Bundesbehörde die Einsichtsgesuche zu prüfen haben ... Es ist keineswegs ausgeschlossen, dass der Beschwerdeführerin die Akteneinsicht tatsächlich gewährt wird. Für den Fall eines abschlägigen Entscheides kann die Beschwerdeführerin an den Ombudsmann gelangen ... Daraufhin wird die Beschwerdeführerin bei der entsprechenden Bundesinstanz Beschwerde erheben und alsdann in diesem Verfahren vorbringen können, die Menschenrechts-konvention erfordere für die Beurteilung ihres Einsichtsgesuches eine richterliche Behörde."

COMPLAINTS

The applicant complains under Article 8 of the Convention of a breach of her right to respect for her private life in that secret files have been compiled containing information on her private and family life.

Under Article 6 para. 1 of the Convention the applicant complains that she did not have a hearing before the Federal Court in the proceedings leading to the decision of 29 May 1991, and that the proceedings leading to the decision of 25 March 1992 lasted unduly long.

Under Article 10 of the Convention the applicant complains that the police compile information which is passed on to other authorities without her having had the opportunity to correct the information. Moreover, the storing of information on the applicant's political activities amounts in her view to a breach of her rights under Article 11 of the Convention.

Under Article 13 of the Convention the applicant complains that she had no effective remedy at her disposal to raise the above complaints. She sees a confirmation hereof in the fact that the Federal Court in its decision of 25 March 1992 did not deal with her appeals.

THE LAW

1. The applicant complains under Article 8 (Art. 8) of the Convention that secret files have been compiled containing information on her private and family life. Under Article 10 (Art. 10) of the Convention she complains that the police compile information which is passed on to other authorities without her having had the opportunity to correct the information. She also invokes Article 11 (Art. 11) of the Convention.

However, under Article 26 (Art. 26) of the Convention the Commission may only deal with a matter after all domestic remedies have been exhausted according to the generally recognised rules of

international law.

In the present case, the proceedings which the applicant instituted in Switzerland originated in her request to consult the cantonal file established on her person. This was refused on 12 March 1990 by the Cantonal Police and, upon appeal, on 12 June 1990 by the Government, though her request was subsequently upheld by the Administrative Court on 7 November 1990. However, upon the Confederation's public law action the Federal Court on 29 May 1991 declared the Administrative Court's decision null and void.

In its subsequent decision of 25 March 1992 the Federal Court pointed out that the applicant's request to consult her file had now to be dealt with by the federal authorities, and that it was not at all excluded that she would be granted access. It was also pointed out that the applicant could in the ensuing proceedings raise complaints under the Convention.

The Commission recalls that Article 26 (Art. 26) of the Convention is intended to provide national authorities with the possibility of remedying the violations alleged before them (see as the most recent reference Eur. Court H.R., judgment of López Ostra of 9 December 1994, Series A no. 303-C, para. 38).

In the present case, the domestic authorities were not afforded the opportunity of putting right the violations alleged by the applicant before the Commission. As the Federal Court pointed out in its decision of 25 March 1992, when requesting access to her file she would have the opportunity to raise complaints under the Convention.

It follows that the applicant has not complied with the condition as to the exhaustion of domestic remedies, and this part of her application must therefore be rejected under Article 27 para. 3 (Art. 27-3) of the Convention.

2. The applicant complains that she did not have a hearing before the Federal Court in the proceedings leading to the decision of 29 May 1991, and that the proceedings resulting in the Federal Court's decision of 25 March 1992 lasted unduly long.

The applicant relies on Article 6 para. 1 (Art. 6-1) of the Convention according to which "in the determination of his civil rights and obligations ..., everyone is entitled to a ... hearing within a reasonable time ..."

Even assuming that the guarantees of this provision are applicable to the present case, the complaints are inadmissible for the following reasons.

a) The applicant complains, first, that in the proceedings leading to the Federal Court's decision of 29 May 1991 the Court did not conduct a hearing.

Under Article 25 para. 1 (Art. 25-1) of the Convention the Commission may only deal with an application from a person "claiming to be the victim of a violation ... of the rights set forth in this Convention."

The Commission has just found that in respect of her complaint under Articles 8, 10 and 11 (Art. 8, 10, 11) of the Convention the applicant had not exhausted domestic remedies according to Article 26 (Art. 26) of the Convention and that the matter had not yet been definitely decided. In respect of the present complaint the applicant can therefore also not claim to be a victim within the meaning of Article 25 para. 1 (Art. 25-1) of the Convention.

This part of the application is therefore manifestly ill-founded

within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

b) The applicant complains, next, that the proceedings resulting in the Federal Court's decision of 25 March 1992 lasted unduly long.

According to the Convention organs' case-law, the proceedings to be examined under Article 6 para. 1 (Art. 6-1) of the Convention commenced on the date when the applicant contested the relevant administrative decision (see Eur. Court H.R., König judgment of 28 June 1978, Series A no. 27, p. 33, para. 98), i.e. on 26 March 1990 when the applicant filed an appeal against the decision of the Cantonal Police of Basel-Landschaft of 12 March 1990. The proceedings ended on 1 May 1992 when the judgment of 25 March 1992 was served on the applicant. The proceedings therefore lasted two years, one month and six days.

When examining the reasonableness of the length of the proceedings, the Commission will consider the circumstances of the case in the light of the criteria laid down in the Convention organs' case-law. In this respect, the complexity of the case, the attitude of the applicant and the conduct of the case by the judicial authorities must be taken into account (see, inter alia, Eur. Court H.R., Scopelliti judgment of 23 November 1993, Series A no. 278, p. 8, para. 19).

In the present case the matter to be decided by the Federal Court, concerning competences of the Federation and the Canton, appeared relatively complex. While the applicant did not contribute to the length of the proceedings, it transpires from the documents that the Federal Court, before dealing with the applicant's administrative law and public law appeals, was awaiting the outcome of the public law action, which was also before the Federal Court and raised similar issues.

In these circumstances the proceedings leading to the Federal Court's decision of 25 March 1992 did not exceed a "reasonable time" within the meaning of Article 6 para. 1 (Art. 6-1) of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

3. Under Article 13 (Art. 13) of the Convention the applicant complains that she had no effective remedy at her disposal to raise the above complaints.

The Commission finds that the applicant has not made out an arguable claim under Articles 6, 8, 10 and 11 (Art. 6, 8, 10, 11) of the Convention (cf. Eur. Court H.R., Plattform "Ärzte für das Leben" judgment of 21 June 1988, Series A no. 139, p. 11 et seq., paras. 27 et seq.).

The remainder of the application is therefore manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention.

For these reasons, the Commission unanimously

DECLARES THE APPLICATION INADMISSIBLE.

Secretary to the Second Chamber — President of the Second Chamber

(K. ROGGE) — (H. DANELIUS)